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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

TO

(Related: CGC-21-594102)

**NOTICE OF MOTION AND MOTION
FOR RECONSIDERATION
OF MAY 12, 2026 ORDER GRANTING
SPECIAL MOTION TO STRIKE
(CODE CIV. PROC., §§ 1008(a), 473(d);
INHERENT AUTHORITY;
EVID. CODE, §§ 451–453)**

Date: [TBD, confirm on reservation system]

Time: [TBD]

Dept.: 301

Judge: Hon. Christine Van Aken

Reservation No.: [Reserve via court system; insert before
filing.]

THE COURT, THE CLERK, AND ALL PARTIES AND COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on the date and time above, or as soon thereafter as the matter may be heard, Plaintiff Franciscus Dylan Rosario will move this Court for an order reconsidering the Court's May 12, 2026 order granting Defendants' special motion to strike the First Amended Complaint under Code of Civil Procedure section 425.16.

The motion is made on the following grounds:

- 1 1. **Code of Civil Procedure section 1008, subdivision (a)** (new or different law, facts, or record
2 available after the ruling, including a complete record of materials plaintiff placed before the
3 Court and judicially noticeable law and court records under Evidence Code sections 451, 452,
4 and 453).
- 5 2. **Code of Civil Procedure section 473, subdivision (d)**, if and to the extent the entered order's
6 text is void or subject to relief under that subdivision (verify against the endorsed minute order
7 or signed order before finalizing this notice).
- 8 3. **Inherent authority to reconsider** to correct legal error and prevent manifest injustice, in-
9 cluding authority discussed in Le Francois v. Goel (2005) 35 Cal.4th 1094.
- 10 4. **Record support: Plaintiff's Memorandum of Points and Authorities; Declaration of**
11 **Franciscus Dylan Rosario; Request for Judicial Notice (Preservation of Law); Request**
12 **for Judicial Notice (Plaintiff-Filed Materials and Defense Sequence) with Exhibit A**
13 (b chronological index tied to FAC III.D); **Exhibit Index**; and **Proposed Order**, filed con-
14 currently herewith.
- 15 5. **Incorporation by reference** under California Rules of Court, rule 3.1113, subdivision (j),
16 of plaintiff's prior filed opposition, requests for judicial notice, exhibit volumes, and contest
17 papers in this action once their **Register of Actions** sequence numbers are confirmed and
18 listed in the Memorandum.
- 19 6. **Supplemental May 7 and May 11 materials** described in the Memorandum (May 12 hearing-
20 package items **13, 14, 15, and 17**: section **425.17** notice; supplemental judicial notice re In-
21 surance Code and FCSPP; motion to strike reply declaration under Jay v. Mahaffey; bench
22 brief and gateway exhibit packet in folder **17**), for reconsideration of whether the entered
23 order rested on an incomplete prong-two record.
- 24 7. **May 11, 2026 second supplemental RFJN and appellate preservation (folder 20) and**
25 **RJN of governing law packet materials (folder 21)**, incorporated by reference as listed in
26 the Memorandum and RFJN tables once ROA numbers are confirmed.
- 27 8. **Proposed Third Amended Complaint (Exhibit T)** lodged with plaintiff's May 11, 2026
28 combined papers, for leave to cure pleading deficiencies consistent with Nguyen-Lam v. Cao

(2009) 171 Cal.App.4th 858 and California Rules of Court, rule 3.1324, if the Court determines amendment is appropriate after reconsideration.

RELIEF REQUESTED (SUMMARY)

Vacate or modify the May 12, 2026 grant of the special motion to strike; restore the First Amended Complaint for further proceedings consistent with law; preserve fee issues for separate noticed motion as appropriate; grant leave to file or deem filed the **Proposed Third Amended Complaint (Exhibit T)** if amendment is necessary to align the operative pleading with any ruling on reconsideration; and grant any other relief listed in the **Proposed Order**.

Dated: May 13, 2026

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

Dated: May 13, 2026



FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody

Rohnert Park, CA 94928

650.488.7510

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1113	Notice of motion contents	Caption, grounds list, relief summary	Notice body
2	CCP 1008(a); 473(d)	Grounds stated in notice	Enumerated items 1–7	Notice enumerate
3	CRC 3.1324	TAC relief noticed consistently	Item 7 and relief section reference memorandum and Exhibit T path	Relief section
4	CCP 1010.6; CRC 2.251	Electronic service (if applicable)	POS filed per separate template	POS-050 path when filed

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**MEMORANDUM OF POINTS AND
AUTHORITIES
IN SUPPORT OF MOTION FOR
RECONSIDERATION**

Hearing: [TBD], Department 301
Judge: Hon. Christine Van Aken

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13	<i>In re Marriage of Baltins</i> , (1989) 212 Cal.App.3d 66
14	<i>Baral v. Schnitt</i> , (2016) 1 Cal.5th 376
15	<i>Bonni v. St. Joseph Health System</i> , (2021) 11 Cal.5th 995
16	<i>Estate of Beard</i> , (1999) 71 Cal.App.4th 753
17	<i>Caldwell v. Taylor</i> , (1933) 218 Cal. 471
18	<i>Cedars-Sinai Medical Center v. Superior Court</i> , (1998) 18 Cal.4th 1
19	<i>Computer Xpress, Inc. v. Jackson</i> , (2001) 93 Cal.App.4th 993
20	<i>Gulf Ins. Co. v. Berger, Kahn, Shafon, Moss, Figler, Simon & Gladstone</i> , (2000) 79 Cal.App.4th

Jay v. Mahaffey, (2013) 218 Cal.App.4th 1522
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Statutes and rules

Code Civ. Proc., § 187
 Code Civ. Proc., § 473, subdiv. (d)
 Code Civ. Proc., § 1008(a)
 Code Civ. Proc., § 425.16
 Code Civ. Proc., § 425.17, subdiv. (c)

1 Cal. Rules of Court, rule 3.1113(j)
2 Cal. Rules of Court, rule 3.1300(d)
3 Cal. Rules of Court, rule 3.1324
4 Evid. Code, §§ 451, 452, 453
5 Civ. Code, § 47, subdiv. (b)
6 Civ. Code, §§ 2330, 2338
7 Evid. Code, § 1222
8 Ins. Code, § 790.02
9 Ins. Code, § 790.03, subdiv. (h)
10 Title 10 CCR, §§ 2695.1 et seq.

11 **I. INTRODUCTION**

12 Plaintiff moves for reconsideration of the Court’s **May 12, 2026** order granting Defendants’ special
13 motion to strike the **First Amended Complaint (“FAC”)** under Code of Civil Procedure section
14 **425.16**.

15 This Memorandum is organized to match the FAC’s theory and the record plaintiff has placed
16 before the Court: an **independent action in equity** to set aside the **CGC-21-594102** judgment
17 based on **extrinsic fraud**, supported by a **three-part sequence** the FAC spells out in **Section III.D**
18 (defense-side access and production history; written and oral representations in MILs and on the
19 record; and rulings the FAC ties to those representations).

20 The motion seeks reconsideration under Code of Civil Procedure section 1008, subdivision (a)
21 (new or different law, facts, or record), section 473, subdivision (d) if the entered order is **void**
22 in whole or part, and the Court’s **inherent authority** to correct legal error, including authority
23 discussed in *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107–08. (*Standard Microsystems*
24 *Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 890 [section 1008(a) attaches to
25 entered orders and requires an adequate motion].)

26 Plaintiff also lodges **proposed corrected language** for the May 12, 2026 minutes in 05a-MAY12-MINUTES-PROPOS
27 (see Exhibit J row in the exhibit index), including passages that flag how the minutes treat supple-

mental items and prong-two framing.

II. INCORPORATION BY REFERENCE (CAL. RULES OF COURT, RULE 3.1113(J))

Plaintiff incorporates by reference the following materials already on file in **CGC-25-631801**, subject to substitution of accurate **Register of Actions** sequence numbers after plaintiff obtains an endorsed register printout:

Working label	Document (confirm exact title on register)	ROA seq.
A	Plaintiff's opposition to Defendants' special motion to strike the FAC	TBD
B	Plaintiff's request(s) for judicial notice filed with or in support of that opposition	TBD
C	Plaintiff's exhibit volumes, compendia, or lodged transcripts cited in the opposition	TBD
D	Plaintiff's May 11, 2026 combined contest and contingent reconsideration papers (motion, Exhibit T, and related components), if accepted for filing	TBD
E	Plaintiff's May 11, 2026 second supplemental request for judicial notice and statement of appellate preservation (May 12 package folder 20), if on file	TBD
F	Plaintiff's May 11, 2026 request for judicial notice of governing law and reliance-effect materials (May 12 package folder 21), if on file	TBD
G	Plaintiff's May 11, 2026 bench brief and related gateway or exhibit packet PDFs (May 12 package folder 17), if on file	TBD

The **Requests for Judicial Notice** filed concurrently with this motion add **preservation-of-law** items and a **non-argumentative sequence index (Exhibit A)** under Evidence Code section **452**,

subdivision (d) for **CGC-21-594102** court records.

III. STANDARDS OF REVIEW AND WHY RECONSIDERATION IS AVAILABLE HERE

A. Reconsideration under section 1008(a). Reconsideration may be granted on **new or different facts, circumstances, or law** not previously presented. (*Standard Microsystems Corp. v. Winbond Electronics Corp.*, supra, 179 Cal.App.4th at pp. 888–90.)

B. De novo issues embedded in the May 12 ruling. Classification of claims under Code of Civil Procedure section **425.16**, and the **intrinsic versus extrinsic fraud** line, present questions this Court evaluates under controlling Supreme Court authority. (*Park v. Board of Trustees of the California State University* (2017) 2 Cal.5th 1057, 1067; *Sweetwater Union High School Dist. v. Gilbane Bldg. Co.* (2019) 6 Cal.5th 931, 940 [de novo statutory construction].)

C. Record completeness. The May 12 minutes state the Court did **not** consider certain supplemental papers plaintiff filed. To the extent that ruling excluded **substantive** materials required for a fair prong-two analysis (for example, section **425.17** materials, judicial notice tenders, reply impeachment motions, or gateway bench materials), the **post-exclusion record** is itself **new** for purposes of section **1008(a)** when presented with this motion. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411 [abuse-of-discretion frame with embedded legal issues for supplemental briefing and leave rulings].)

IV. INTRINSIC VERSUS EXTRINSIC FRAUD: THE FAC PLEADS EXTRINSIC “PROCESS” FRAUD, NOT MERE TRIAL PERJURY

The FAC’s gravamen is that defense-side **representations to the trial court** about **receipt, possession, and provenance** of **911 audio, body-worn camera materials, and CAD logs** induced **concrete pretrial and trial rulings** that impaired plaintiff’s ability to present objective recordings in an orderly way. (FAC sections **III.A–III.D, IV.**)

California equity distinguishes **intrinsic** fraud (classic examples include perjury at trial for the jury

1 to test) from **extrinsic** fraud that prevents a fair contest or corrupts the adversary process. *Kulchar*
2 v. *Kulchar* (1969) 1 Cal.3d 467, 471; *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170
3 Cal.App.3d 725, 735; *In re Marriage of Baltins* (1989) 212 Cal.App.3d 66; *Cedars-Sinai Medical*
4 *Center v. Superior Court* (1998) 18 Cal.4th 1, 11–12.

5 Post-judgment discovery of **deliberately concealed** materials can state an extrinsic-fraud theory
6 in appropriate cases. *In re Marriage of Modnick* (1983) 33 Cal.3d 897, 905; *Stevenot v. Stevenot*
7 (1984) 154 Cal.App.3d 1051; *Estate of Beard* (1999) 71 Cal.App.4th 753, 776–77.

8 **Application.** The FAC’s **Section III.D** is not a request to ignore the jury’s factfinding on “con-
9 tact” in the abstract. It alleges a **specific mechanism**: MIL language and on-the-record statements,
10 tied to transcript pinpoints, allegedly preceded **exclusion, continuance denials, and deferred ad-**
11 **mission** rulings. That structure tracks **extrinsic** fraud authorities above, not a generic “the jury
12 believed the defendant” intrinsic attack.

13 **Note on Code of Civil Procedure section 187.** The FAC references section **187** together with
14 **inherent equitable power** and *Kulchar*. Section **187** states ancillary means to exercise jurisdiction
15 conferred on a court (official text). **Relief from judgment** doctrines and vacatur for fraud are
16 developed primarily in **equity** and in statutes such as Code of Civil Procedure section **473** and
17 decisional law cited above. Plaintiff’s theory remains as pleaded in the **FAC**; this motion does not
18 add a new cause of action.

19 20 **V. “FULLY LITIGATED” AND MIL RULINGS: NON-PRECLUSIVE** 21 **AS TO EXTRINSIC FRAUD**

22 The May 12 minutes reason that plaintiff’s issues “were fully litigated” and point to **MIL** materials
23 and a **trial scheduling order** in the underlying action.

24 **Issue preclusion** requires an issue **actually litigated** and **necessarily decided**. *Lucido v. Superior*
25 *Court* (1990) 51 Cal.3d 335, 341. Pretrial **admissibility** and housekeeping orders are not the
26 functional equivalent of a **final fraud judgment** on whether extrinsic fraud occurred.

27 **Application.** The FAC alleges that **MIL Nos. 6 and 17** and the colloquy on **February 18, 2025**,
28 and trial statements on **April 16, 2025**, supplied **false premises** for later rulings. (**FAC section**

1 **III.D.)** Whether those allegations are **true** is for trial, but **collateral estoppel** does not arise from
2 the mere **existence** of MIL rulings without the fraud issues having been **actually and necessarily**
3 **adjudicated**. (*Lucido*, supra, 51 Cal.3d at p. 341.)

4
5 **VI. ANTI-SLAPP ARCHITECTURE: PRONG ONE, PRONG TWO, AND**
6 **“THE WRONG COMPLAINED OF”**

7 **A. Prong one is not the end of the inquiry for an equitable vacatur claim.** The minutes cite
8 authority that equitable actions to vacate can satisfy prong one. (*Ahmed v. Collect Access, LLC*
9 (2025) 114 Cal.App.5th 1092.) Prong one does **not** resolve prong two. *Baral v. Schnitt* (2016) 1
10 Cal.5th 376, 384–85.

11 **B. “Wrong complained of.”** A claim may be struck only if the **protected activity itself** is the
12 wrong, not merely evidence of a different wrong. *Park v. Board of Trustees*, supra, 2 Cal.5th at
13 p. **1060** (emphasis in original). The FAC uses in-court statements and MILs as **operative facts**
14 showing **how** the judgment was allegedly procured, not as freestanding defamation claims. (**FAC**
15 **sections I, III.D, IV, V** [FAC disclaims defamation].)

16 **C. No improper weighing at prong two.** At prong two, the court asks whether plaintiff’s showing,
17 if credited, could succeed, without **weighing** credibility like a jury. *Baral*, supra, 1 Cal.5th at
18 p. **385**; *Computer Xpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010.

19 **Application.** If the May 12 order treated the **underlying jury verdict** as dispositive of the **ex-**
20 **trinsic fraud** theory at prong two, that step risks **merits weighing** inconsistent with *Baral* and
21 *Computer Xpress*.

22
23 **VII. EXCLUDED SUPPLEMENTAL RECORD (MAY 7 AND MAY 11**
24 **FILINGS)**

25 The May 12, 2026 minutes (see 05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md) state
26 the Court did not consider plaintiff’s “various supplemental opposition briefs,” described as filed
27 without authorization. For **entered-order** reconsideration, plaintiff isolates the following **May 12**

1 **hearing-package** items because they are **category distinct** from a generic “late reply” and because
2 they bear on prong-two **record completeness**:

- 3 1. **Item 13 (May 7, 2026)**: Notice and statement re Code of Civil Procedure section **425.17**,
4 Insurance Code, FCSPP, and defense conduct. This is a **statutory exemption** lane that may
5 be raised before adjudication. (*Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 21–22.)
- 6 2. **Item 14 (May 7, 2026)**: Supplemental request for judicial notice re Insurance Code sec-
7 tion **790.03(h)** and Fair Claims Settlement Practices Regulations (title 10, Cal. Code Regs.,
8 §§ 2695.1 et seq.). Once tendered, judicial notice of qualifying materials follows Evidence
9 Code procedures; *Ross v. Creel Printing & Publishing Co.* (2002) 100 Cal.App.4th 736,
10 743–44 supplies the “tendered” framework plaintiff relies on for preservation.
- 11 3. **Item 15 (May 7, 2026)**: Motion to strike opposing counsel’s reply declaration under *Jay*
12 *v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–38 (anti-SLAPP reply may not enlarge the
13 moving papers’ theory).
- 14 4. **Item 17 (May 11, 2026)**: Bench brief on gateway sequencing and per-prong threshold anal-
15 ysis (“Inland Oversight” framing), including lodged exhibit packet references in folder **17**.

16 **CRC 3.1300(d)** commits **timing** of late papers to the Court’s discretion; it does not convert **sub-**
17 **stantive** statutory defenses, mandatory judicial notice paths, or *Jay*-type reply integrity motions
18 into per se waivers. California Rules of Court, rule 3.1300(d). When a discretionary “without
19 authorization” line excludes those categories wholesale, the resulting **prong-two** record risks em-
20 bedded **legal** and **evidentiary** error, not a mere housekeeping slip. (*Reedy v. Bussell* (2007) 148
21 Cal.App.4th 1272, 1287–88; *Kolani v. Gluska*, supra, 64 Cal.App.4th at p. 411.)

22 **Cross-reference to proposed minute corrections.** Plaintiff’s companion 05a–MAY12–MINUTES–PROPOSED–CORR
23 labels Current blocks and proposed replacements where the minutes compress supplemental mate-
24 rials, prong-two weighing, and section **425.17(c)** characterization. The Court may adopt none, one,
25 or more alternatives; the point for reconsideration is that the **entered** text is the object of section
26 **1008(a)** review once clarified against the register.

VIII. PRONG-TWO PILLAR CHECKLIST (FOUR PILLARS)

This checklist consolidates the May 11, 2026 motion’s prong-two structure, trimmed to **post-order** posture, and **maps each pillar to excluded folders** in Section VII:

Pillar 1: Post-trial concealment. Modnick; Beard; bench brief and exhibit packet materials in **folder 17** (item 17) document the post-trial discovery sequence plaintiff ties to extrinsic fraud. Each pillar, standing alone, can satisfy minimal merit if credited. (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.)

Pillar 2: Insurer and regulatory context outside privilege silos. Section **425.17** notice and supplemental RFJN in **folders 13 and 14** (items 13–14) tender the Insurance Code and FCSRP materials plaintiff argues are analytically distinct from a bare “litigation conduct” label in the minutes.

Pillar 3: Rubenstein restitutionary lane. Rubenstein; Cedars-Sinai; monetary relief framed as restitution of fraudulently procured judgment proceeds travels with vacatur analysis, not as free-standing “fraud damages” barred by Civil Code section **47(b)** in the abstract.

Pillar 4: Section 425.17(c) commercial speech exemption. Same folders **13–14**; the minutes’ one-line “inapposite” ruling is a **legal classification** plaintiff preserves for reconsideration together with the regulatory text incorporated by reference in the RFJN papers.

Optional footnote (structural order of proof). If the Court’s minutes are read to rest on trial-structure or proof-order premises beyond Baral’s second step, plaintiff reserves Smith v. Superior Court (1992) 10 Cal.App.4th 1031 and Evidence Code sections **1280 / 1561** only if the **endorsed** order or supplemental briefing makes that lens dispositive. See compliance validation WARN if unused.

IX. CODE OF CIVIL PROCEDURE SECTION 425.17, SUBDIVISION (C), AND SIMPSON STRONG-TIE

If any defendant’s conduct includes **commercial speech** in the statutory sense, subdivision (c) may remove certain claims from anti-SLAPP treatment when its elements are met. Code Civ. Proc.,

1 section 425.17, subdivision (c); *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 21–22
2 (timing and applicability of the exemption).

3 **Application.** The FAC frames insurer involvement and regulated claim-handling context in ways
4 that may intersect with **section 425.17(c)** depending on proof. (**FAC sections II, III.**) The May 12
5 minutes state the Court found **section 425.17(c)** “inapposite” because plaintiff “sues over litigation
6 conduct.” That ruling is **legal classification** subject to reconsideration if the **FAC’s** allegations or
7 plaintiff’s **supplemental** papers (items **13–14**) supply a **different record** on what conduct is at the
8 center of the claim.

9
10 **X. CIVIL CODE SECTION 47, SUBDIVISION (B), AND ANCILLARY**
11 **EQUITABLE RELIEF: RUBENSTEIN**

12 The litigation privilege bars many **derivative tort** theories grounded in protected communications.
13 *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212; *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065
14 (privilege can extend to certain noncommunicative acts necessarily related to communicative con-
15 duct).

16 **Equitable vacatur** remains analytically distinct from a generic “fraud damages” suit. *Rubenstein*
17 *v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147 (privilege does not eliminate equitable vacation
18 of a fraudulently obtained judgment).

19 **Application.** The FAC seeks **vacatur** and **ancillary equitable monetary relief** tied to restoring
20 fairness after alleged extrinsic fraud. (**FAC sections I, VI.**) If the May 12 order **struck the FAC**
21 **in its entirety** without **severing** equitable vacatur from theories the privilege might reach, recon-
22 sideration should **restore the equitable core** for further orderly briefing under *Baral’s* severance
23 principles.

XI. SECONDARY REGULATORY CONTEXT (DOES NOT REPLACE KULCHAR)

Insurance Code sections 790.02 and 790.03, subdivision (h), and Title 10, California Code of Regulations, sections 2695.1 et seq., supply **industry standards** that can inform **objective reasonableness** of investigation and disclosure narratives in insurance-related litigation. Official texts. *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 reminds courts that certain **private enforcement** theories tied directly to bare statutory unfair-practice lists face limits. *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995 supplies modern Supreme Court framing for section **425.16** categorization issues when they intersect with regulatory context. The FAC's **center of gravity** remains **equitable vacatur** and fraud-on-process allegations, not a freestanding duplicate statutory tort unless and until a proposed amendment says otherwise.

XII. AGENCY AND ADOPTED STATEMENTS (LEGAL FRAMING FOR FAC ALLEGATIONS)

Civil Code sections 2330 and 2338 and Evidence Code section 1222 supply default frameworks for **principal-agent** relationships and **authorized statements**. Official texts. *Gulf Ins. Co. v. Berger, Kahn, Shafon, Moss, Figler, Simon & Gladstone* (2000) 79 Cal.App.4th 114 discusses insurer relationships to panel counsel in an agency framework. **Application.** The FAC alleges CSAA **funded, directed, and controlled** the defense and that counsel acted as **litigation agents**. (FAC sections II, III.D.) These authorities supply **legal labels** for facts triable in the **equity** action; they do not themselves prove fraud.

XIII. LOS ANGELES AIRWAYS BALANCING, CALDWELL/PICO, AND THE ENTERED ORDER

The May 12 minutes quote *Los Angeles Airways, Inc. v. Hughes Tool Co.* (1979) 95 Cal.App.3d 1, 7 for finality concerns after a full trial. The same passage **balances** judicial economy against **fair hearing** and **fraud** concerns when little judicial time has been invested, and acknowledges

equitable forces in other postures. *Id.* at p. 7.

May 11 IV.B (trimmed): not a categorical post-trial bar. The minutes’ use of Los Angeles Airways risks **over-reading** the balance as a per se rule. Where post-trial facts suggest deliberately concealed materials that impaired presentation, equity cases emphasize the fraud side of the scale. *Caldwell v. Taylor* (1933) 218 Cal. 471, 475; *Pico v. Cohn* (1891) 91 Cal. 129, 133–34.

Application. Even where trial has occurred, **post-trial** assembly of sworn transcripts that allegedly **contradict** representations made to the trial judge is relevant to whether equity should open the door to a **non-jury** determination of **extrinsic fraud**, consistent with Kulchar, Modnick, Beard, and Cedars-Sinai. Plaintiff cross-links minute-level alternatives in 05a-MAY12-MINUTES-PROPOSED-CORRECTED- where the Current block compresses Hughes Tool into a “full trial” bar.

XIV. PRAYER ON RECONSIDERATION (SUMMARY)

Vacate or modify the **May 12, 2026** anti-SLAPP grant; reinstate the **FAC** for further proceedings; **sever** if needed under Baral; preserve **fees** for separate noticed motion consistent with the minutes’ notice concerns; grant leave to amend if the Court’s case management orders require a noticed motion; and grant leave to file or deem filed the **Proposed Third Amended Complaint (Exhibit T)** lodged with plaintiff’s May 11, 2026 combined papers, if and to the extent the Court identifies pleading deficiencies fairly addressed by amendment after an anti-SLAPP grant. (*Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–73; California Rules of Court, rule 3.1324.)

Dated: May 13, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 Email: soltrinox@gmail.com

Dated: May 13, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this memorandum.

#	Authority	Specific requirement	This filing's compliance	Evidence (section or label)
1	CRC 3.1113	Memorandum support for motion	Sections I–XIV organize authorities and application	Body; TOA
2	CRC 3.1113(j)	Incorporation by reference with ROA placeholders	Section II table (labels A–G)	Section II
3	CCP 1008(a)	New or different law, facts, or record	Sections III.C, VII, VIII; RFJN concurrently filed	III, VII, VIII
4	CCP 425.16	Prong-two architecture; no improper weighing	Sections VI, VIII; <u>Baral</u> , <u>Computer Xpress</u>	VI, VIII
5	CCP 425.17(c)	Commercial-speech exemption where pled	Section IX	IX
6	Evid. Code 451–453	Judicial notice categories as used	RFJN 03a/03b filed concurrently	03a, 03b drivers
7	CRC 3.1300(d)	Late-paper timing vs substantive tenders	Section VII discusses discretion vs mandatory notice paths	VII
8	CRC 3.1324	Leave to amend statement if TAC relief sought	Section XIV prayer (Nguyen-Lam alignment)	XIV

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**REQUEST FOR JUDICIAL NOTICE
(PRESERVATION OF LAW);
MEMORANDUM (LIMITED)**

(Evid. Code, §§ 451–453)

REQUEST

Plaintiff requests that the Court take judicial notice of the following **California statutory and regulatory texts** and **published opinions**, under Evidence Code sections **451, 452, and 453**, for **preservation of a stable appellate record**, for **accuracy of legal standards**, and to **assist the Court** in locating governing law referenced in plaintiff's **First Amended Complaint** and in the instant motion for reconsideration.

No request is made for the truth of disputed factual matters outside the black-letter content of the sources listed.

MEMORANDUM (LIMITED)

Standard. Evidence Code section **451** mandates judicial notice of California statutory law and decisional law. Section **452** authorizes notice of additional categories where relevant. Section **453** governs the manner of submission.

Purpose. Each item below states **one neutral sentence** describing what the source contains, without arguing the merits of this case.

TABLE OF AUTHORITIES (LIMITED SUBSET FOR THIS RFJN)

Cases

Kulchar v. Kulchar, (1969) 1 Cal.3d 467
In re Marriage of Modnick, (1983) 33 Cal.3d 897
Stevenot v. Stevenot, (1984) 154 Cal.App.3d 1051
Estate of Beard, (1999) 71 Cal.App.4th 753
Aldrich v. San Fernando Valley Lumber Co., (1985) 170 Cal.App.3d 725
In re Marriage of Baltins, (1989) 212 Cal.App.3d 66
Cedars-Sinai Medical Center v. Superior Court, (1998) 18 Cal.4th 1
Lucido v. Superior Court, (1990) 51 Cal.3d 335
Los Angeles Airways, Inc. v. Hughes Tool Co., (1979) 95 Cal.App.3d 1
Silberg v. Anderson, (1990) 50 Cal.3d 205
Rusheen v. Cohen, (2006) 37 Cal.4th 1048
Rubenstein v. Rubenstein, (2000) 81 Cal.App.4th 1131
Park v. Board of Trustees of the California State University, (2017) 2 Cal.5th 1057
Baral v. Schnitt, (2016) 1 Cal.5th 376
Computer Xpress, Inc. v. Jackson, (2001) 93 Cal.App.4th 993
Bonni v. St. Joseph Health System, (2021) 11 Cal.5th 995
Simpson Strong-Tie Co. v. Gore, (2010) 49 Cal.4th 12
Moradi-Shalal v. Fireman's Fund Ins. Cos., (1988) 46 Cal.3d 287

1 *Gulf Ins. Co. v. Berger, Kahn, Shafon, Moss, Figler, Simon & Gladstone*, (2000) 79 Cal.App.4th
2 114

3 *Le Francois v. Goel*, (2005) 35 Cal.4th 1094

4 *Standard Microsystems Corp. v. Winbond Electronics Corp.*, (2009) 179 Cal.App.4th 868

5 *Reedy v. Bussell*, (2007) 148 Cal.App.4th 1272

6 *Kolani v. Gluska*, (1998) 64 Cal.App.4th 402

7 *Ross v. Creel Printing & Publishing Co.*, (2002) 100 Cal.App.4th 736

8 *Jay v. Mahaffey*, (2013) 218 Cal.App.4th 1522

9 *Nguyen-Lam v. Cao*, (2009) 171 Cal.App.4th 858

10 *Caldwell v. Taylor*, (1933) 218 Cal. 471

11 *Pico v. Cohn*, (1891) 91 Cal. 129

12 **Statutes and rules**

13 Code Civ. Proc., § 187

14 Code Civ. Proc., § 473

15 Code Civ. Proc., § 1008(a)

16 Code Civ. Proc., § 425.16

17 Code Civ. Proc., § 425.17

18 Evid. Code, §§ 451, 452, 453, 459

19 Civ. Code, § 47, subdiv. (b)

20 Civ. Code, §§ 2330, 2338

21 Evid. Code, § 1222

22 Ins. Code, § 790.02

23 Ins. Code, § 790.03, subdiv. (h)

24 Title 10 CCR, §§ 2695.1 et seq.

25 Cal. Rules of Court, rule 3.1113

26 Cal. Rules of Court, rule 3.1300(d)

27 Cal. Rules of Court, rule 3.1324

ITEMS FOR JUDICIAL NOTICE

Item 1. Code of Civil Procedure, section 187 (official text). The section states that when jurisdiction is conferred on a court, the means necessary to carry it into effect are also given, and suitable process may be adopted consistent with the code when procedure is not specifically prescribed.

Item 2. Code of Civil Procedure, section 473 (official text), including subdivisions relevant to relief from judgment or orders on the grounds stated in the statute.

Item 3. Code of Civil Procedure, section 1008, subdivision (a) (official text). The subdivision authorizes reconsideration on new or different facts, circumstances, or law.

Item 4. Code of Civil Procedure, section 425.16 (official text), including subdivisions (b), (e), and (c) as written.

Item 5. Code of Civil Procedure, section 425.17 (official text), including subdivision (c) as written.

Item 6. Evidence Code, sections 451, 452, 453, and 459 (official text). These provisions govern judicial notice and related procedures.

Item 7. Civil Code, section 47, subdivision (b) (official text). The subdivision defines privileged publications or broadcasts in certain litigation-related contexts using the statute's terms.

Item 8. Civil Code, sections 2330 and 2338 (official text). The sections state rules regarding principals and agents.

Item 9. Evidence Code, section 1222 (official text). The section states conditions under which evidence of an authorized statement may be admissible for certain purposes, as written.

Item 10. Insurance Code, section 790.02 (official text). The section states legislative findings and purposes related to unfair methods of competition and unfair or deceptive acts in the business of insurance.

Item 11. Insurance Code, section 790.03, subdivision (h) (official text), including enumerated subparagraphs as published.

Item 12. California Code of Regulations, title 10, sections 2695.1 et seq. (Fair Claims Settlement Practices Regulations; official text), including **2695.4** and **2695.7** as published.

Item 13. Kulchar v. Kulchar (1969) 1 Cal.3d 467. The Supreme Court discusses extrinsic fraud, including circumstances where a party is fraudulently prevented from presenting a claim or defense.

Item 14. In re Marriage of Modnick (1983) 33 Cal.3d 897. The Supreme Court discusses extrinsic fraud and post-judgment discovery of deliberately concealed material in the dissolution context.

Item 15. Stevenot v. Stevenot (1984) 154 Cal.App.3d 1051. The Court of Appeal discusses extrinsic fraud and concealed evidence in relation to set-aside remedies.

Item 16. Estate of Beard (1999) 71 Cal.App.4th 753. The Court of Appeal discusses extrinsic fraud and post-trial discovery of concealed matters in the probate set-aside context.

Item 17. Aldrich v. San Fernando Valley Lumber Co. (1985) 170 Cal.App.3d 725. The Court of Appeal discusses extrinsic fraud involving false statements to the court affecting the adversary process.

Item 18. In re Marriage of Baltins (1989) 212 Cal.App.3d 66. The Court of Appeal discusses extrinsic fraud and distinctions between intrinsic and extrinsic fraud.

Item 19. Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1. The Supreme Court discusses extrinsic fraud and deprivation of an opportunity to present issues at trial.

Item 20. Lucido v. Superior Court (1990) 51 Cal.3d 335. The Supreme Court discusses collateral estoppel requirements, including that an issue have been actually litigated and necessarily decided.

Item 21. Los Angeles Airways, Inc. v. Hughes Tool Co. (1979) 95 Cal.App.3d 1. The Court of Appeal discusses equitable considerations relating to motions to set aside a judgment, including finality and fraud-related concerns.

Item 22. Silberg v. Anderson (1990) 50 Cal.3d 205. The Supreme Court discusses Civil Code section 47, subdivision (b), and the litigation privilege.

Item 23. Rusheen v. Cohen (2006) 37 Cal.4th 1048. The Supreme Court discusses the litigation privilege and its application to communicative and related conduct.

Item 24. Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131. The Court of Appeal dis-

cusses Civil Code section 47, subdivision (b), in relation to equitable remedies affecting a judgment.

Item 25. Park v. Board of Trustees of the California State University (2017) 2 Cal.5th 1057. The Supreme Court interprets Code of Civil Procedure section 425.16 and discusses the “wrong complained of” test.

Item 26. Baral v. Schnitt (2016) 1 Cal.5th 376. The Supreme Court discusses the two-step special motion to strike framework, severance, and the plaintiff’s second-step showing.

Item 27. Computer Xpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993. The Court of Appeal discusses limitations on weighing evidence at the second step of the anti-SLAPP framework.

Item 28. Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995. The Supreme Court discusses Code of Civil Procedure section 425.16, including categorization issues raised in that case.

Item 29. Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12. The Supreme Court discusses Code of Civil Procedure section 425.17 and its relationship to special motions to strike.

Item 30. Moradi-Shalal v. Fireman’s Fund Ins. Cos. (1988) 46 Cal.3d 287. The Supreme Court discusses private enforcement limitations related to certain Insurance Code unfair-practice provisions in the circumstances presented.

Item 31. Gulf Ins. Co. v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone (2000) 79 Cal.App.4th 114. The Court of Appeal discusses insurer relationships to panel counsel in an agency framework.

Item 32. Le Francois v. Goel (2005) 35 Cal.4th 1094. The Supreme Court discusses inherent authority to reconsider certain interim rulings to correct error.

Item 33. Standard Microsystems Corp. v. Winbond Electronics Corp. (2009) 179 Cal.App.4th 868. The Court of Appeal discusses timing and prerequisites for motions under Code of Civil Procedure section 1008, subdivision (a).

Item 34. California Rules of Court, rule 3.1113 (official text), including subdivision (j) as written.

Item 35. Reedy v. Bussell (2007) 148 Cal.App.4th 1272. The Court of Appeal discusses

1 abuse of discretion and prejudice in the context of late filings and disentitlement arguments.

2 **Item 36.** Kolani v. Gluska (1998) 64 Cal.App.4th 402. The Court of Appeal discusses
3 standards for rulings on supplemental briefing and related discretion.

4 **Item 37.** Ross v. Creel Printing & Publishing Co. (2002) 100 Cal.App.4th 736. The Court
5 of Appeal discusses judicial notice once materials are tendered under the Evidence Code frame-
6 work.

7 **Item 38.** Jay v. Mahaffey (2013) 218 Cal.App.4th 1522. The Court of Appeal discusses
8 anti-SLAPP reply boundaries and enlargement of the moving papers' theory.

9 **Item 39.** Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858. The Court of Appeal discusses
10 leave to amend after an anti-SLAPP ruling where amendment cures identified deficiencies.

11 **Item 40.** Caldwell v. Taylor (1933) 218 Cal. 471. The Supreme Court discusses equitable
12 considerations in fraud-related set-aside postures.

13 **Item 41.** Pico v. Cohn (1891) 91 Cal. 129. The Supreme Court discusses equitable fraud
14 principles in an older posture.

15 **Item 42.** California Rules of Court, rule 3.1300(d) (official text). The rule addresses timing
16 and court discretion for late papers in the trial court's scheduling framework.

17 **Item 43.** California Rules of Court, rule 3.1324 (official text). The rule addresses leave to
18 amend requirements including statements of additional allegations and supporting declarations.

19 _____
20 **Dated:** May 13, 2026

21 **FRANCISCUS DYLAN ROSARIO**

22 Plaintiff, In Pro Per

23 7624 Melody Drive

24 Rohnert Park, CA 94928

25 Tel: 650.488.7510

26 Email: soltrinox@gmail.com
27 _____

Dated: May 13, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario".

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this preservation request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451–453	Neutral item descriptions; no disputed-fact notice	Items list black-letter sources only	Items for judicial notice
2	CRC 3.1113	Organized authority list	Limited TOA subset	TOA (limited)

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102)

**REQUEST FOR JUDICIAL NOTICE
(PLAINTIFF-FILED MATERIALS AND
DEFENSE SEQUENCE);
EXHIBIT A**

(Evid. Code, § 452(d))

I. PURPOSE AND SCOPE

This request has two limited purposes:

1. **Plaintiff's own prior filings in CGC-25-631801.** Plaintiff asks the Court to recognize the **existence** on the court file of opposition papers, requests for judicial notice, exhibit volumes, bench briefs, and related documents plaintiff already filed in this action, for purposes of **incorporation by reference** under California Rules of Court, rule **3.1113**, subdivision **(j)**, and to avoid duplicating voluminous exhibits.
2. **Court records of CGC-21-594102** that plaintiff has **lodged, filed, or cited** in this action or in the operative complaint. Plaintiff requests judicial notice under Evidence Code section **452**, subdivision **(d)** of the **records** of the Superior Court in **CGC-21-594102** (for example, filed motions in limine, orders, and lodged or filed transcript excerpts), **for the existence and**

content of those court records as records, not for the truth of every factual assertion recited inside them.

This request **does not** ask the Court to treat any noticed document as a judicial admission that extrinsic fraud occurred. It supplies an **index** that tracks the **sequence and titles** of materials that the **First Amended Complaint** describes in **Section III.D** and related sections.

II. INCORPORATION BY REFERENCE (CRC 3.1113(J)) — REGISTER PLACEHOLDERS

After plaintiff confirms each document’s **Register of Actions** sequence number on the clerk’s register for **CGC-25-631801**, plaintiff incorporates by reference the following **categories** of already-filed materials (insert ROA number in brackets):

Category	Description	ROA seq.
Opposition	Plaintiff’s opposition to the special motion to strike the First Amended Complaint	TBD
RFJN(s)	Plaintiff’s request(s) for judicial notice filed with or in support of that opposition	TBD
Exhibits / compendium	Plaintiff’s exhibit binders, compendia, or lodged transcript excerpts filed with the opposition	TBD
Bench briefs	Any bench brief or supplemental memoranda the Court’s minutes reference as filed (verify authorization rulings separately in the Memorandum)	TBD
Contest / reconsideration shell	Plaintiff’s May 11, 2026 combined contest and contingent reconsideration papers, if on file	TBD
Second supplemental RJN / preservation	Plaintiff’s May 11, 2026 second supplemental request for judicial notice and statement of appellate preservation (May 12 package folder 20), if on file	TBD
RJN governing law / reliance chain	Plaintiff’s May 11, 2026 request for judicial notice of governing law and related packet PDFs (May 12 package folder 21), if on file	TBD

The detailed incorporation table in the **Memorandum of Points and Authorities** may repeat this list with ROA numbers once confirmed.

III. EVIDENCE CODE SECTION 452, SUBDIVISION (D) — CGC-21-594102 RECORDS (NON-EXCLUSIVE LIST)

Plaintiff requests notice of the **court's own records** in **CGC-21-594102**, including without limitation:

1. **Motion in Limine No. 6**, filed **January 17, 2025**, and related register entries (the First Amended Complaint references Clerk's Transcript, Volume 1, pages 149–151 for excerpts).
 2. **Motion in Limine No. 17**, filed **January 17, 2025**, and related register entries (the First Amended Complaint references Clerk's Transcript, Volume 1, page 238 for excerpts).
 3. **February 18, 2025** hearing records, including the **hearing transcript** pages and lines cited in the First Amended Complaint, Section III.D (for example, the page and line cited for the colloquy referenced there).
 4. **April 16, 2025** trial records, including **trial transcript, Day 7**, lines cited in the First Amended Complaint, Section III.D (for example, lines referenced for exclusion of supplemental material and deferred 911 admission).
 5. **April 17, 2025** trial records, including **trial transcript, Day 8**, line cited in the First Amended Complaint, Section III.B (authentication colloquy).
 6. **April 25, 2025** trial records, including **trial transcript, Day 11**, line cited in the First Amended Complaint, Section III.E (verdict vote).
 7. **Clerk's Transcript** volume and page cited in the First Amended Complaint for entry of judgment (Section III.E).
 8. **May 11, 2026 second supplemental RFJN and appellate preservation** materials filed in **CGC-25-631801** (May 12 package folder **20**), including any register entries for that filing.
 9. **May 11, 2026 RJN of governing law** and related combined packet PDFs filed in **CGC-25-631801** (May 12 package folder **21**), including any register entries for that filing.
-

IV. EXHIBIT A — CHRONOLOGICAL DEFENSE SEQUENCE INDEX (DESCRIPTIVE ONLY)

Each row ties a **date** and **instrument or transcript** to a **First Amended Complaint** pointer. Wording follows the complaint’s structure (three “LEG” components in Section III.D). This table does **not** add factual allegations beyond those pointers.

Row	Date (as pleaded or filed)	Instrument, transcript, or event (neutral title)	FAC pointer (section / subsection)	Leg
A1	On or before Sept. 2022 (approx., per FAC)	Service or transfer of incident recordings and related materials in discovery (described in FAC as part of production history)	FAC III.D (LEG 1 opening); FAC III.C	1
A2	Jan. 17, 2025	Defendant’s Motion in Limine No. 6 filed in CGC-21-594102	FAC III.D (LEG 2; “False Representation in MIL No. 6”)	2
A3	Jan. 17, 2025	Defendant’s Motion in Limine No. 17 filed in CGC-21-594102	FAC III.D (LEG 2; “False Representation in MIL No. 17”)	2
A4	Feb. 18, 2025	Pretrial hearing before the Hon. Garrett L. Wong; colloquy described in FAC (including lines cited)	FAC III.D (LEG 2; “False Statement #1”)	2
A5	Apr. 16, 2025	Trial statements described in FAC (supplemental report / subpoena representation)	FAC III.D (LEG 2; “False Statement #2”)	2
A6	Apr. 16, 2025	Trial statements described in FAC (uncertainty about 911 recording)	FAC III.D (LEG 2; “False Statement #3”)	2
A7	Apr. 16, 2025	Ruling on supplemental report (trial transcript lines cited in FAC)	FAC III.D (LEG 3; “Ruling #1”)	3
A8	Feb. 18, 2025	Court response described in FAC after defense statements (page and line cited)	FAC III.D (LEG 3; “Ruling #2”)	3
A9	Feb.–Apr. 2025 (as pleaded)	Continuance denials and verification posture described in FAC	FAC III.D (LEG 3; “Ruling #3”)	3
A10	Apr. 16, 2025	Deferred admission ruling for 911 call (trial transcript lines cited in FAC)	FAC III.D (LEG 3; “Ruling #4”)	3
A11	Apr. 25, 2025	Jury verdict and vote described in FAC	FAC III.E	—

Row	Date	Instrument / event	FAC pointer	Leg
A12	Apr. 25, 2025	Judgment entered (Clerk's Transcript cite in FAC)	FAC III.E	—
A13	May 11, 2026	Plaintiff's combined motion for reconsideration, Exhibit T, and separator PDFs (47-page combined upload per May 12 render list)	Memorandum VII; Exhibit index row L	—
A14	May 11, 2026	Bench brief on gateway sequencing and plaintiff's exhibits packet PDF (May 12 package folder 17)	Memorandum VII (item 17)	—
A15	May 11, 2026	Second supplemental request for judicial notice and statement of appellate preservation (May 12 package folder 20)	Memorandum II label E; RFJN incorporation	—
A16	May 11, 2026	Request for judicial notice of governing law and reliance-effect packet PDFs (May 12 package folder 21)	Memorandum II label F; RFJN incorporation	—

V. RESERVATION

Plaintiff reserves the right to supplement this request after obtaining **endorsed** register printouts and to lodge additional certified excerpts consistent with court rules.

Dated: May 13, 2026

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

Dated: May 13, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the signature.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this record request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 452(d)	Court records: existence and content, not truth of every assertion inside	Section III list; Exhibit A descriptive rows	III, IV
2	CRC 3.1113(j)	Incorporation categories with ROA placeholders	Section II longtable	II
3	CRC 3.1113	Non-argumentative Exhibit A index	Exhibit A Exhibit A rows A1–A16	IV